

HOUSE No. 3144

The Commonwealth of Massachusetts

PRESENTED BY:

Bradley H. Jones, Jr.

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to DOR interest rate parity.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Bradley H. Jones, Jr.</i>	<i>20th Middlesex</i>	<i>1/14/2025</i>
<i>Kimberly N. Ferguson</i>	<i>1st Worcester</i>	<i>1/14/2025</i>
<i>Paul K. Frost</i>	<i>7th Worcester</i>	<i>1/31/2025</i>
<i>Todd M. Smola</i>	<i>1st Hampden</i>	<i>3/10/2025</i>
<i>Hannah Kane</i>	<i>11th Worcester</i>	<i>1/31/2025</i>

HOUSE No. 3144

By Representative Jones of North Reading, a petition (accompanied by bill, House, No. 3144) of Bradley H. Jones, Jr. and others relative to Department of Revenue interest rate parity. Revenue.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 2845 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to DOR interest rate parity.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 37 of chapter 62C of the General Laws, as appearing in the 202
2 Official Edition, is hereby amended by striking out the last sentence of the second paragraph.

3 SECTION 2. Section 40 of said chapter 62C, as so appearing, is hereby amended by
4 striking out paragraph (a) and inserting in place thereof the following paragraph:-

5 (a) If any refund of any tax, interest or penalties is made pursuant to sections thirty,
6 thirty-one A, thirty-six, thirty-six A, thirty-seven or thirty-nine of this chapter, or sections
7 twenty-seven or twenty-seven A of chapter sixty-five, or section six of chapter sixty-five A, the
8 state treasurer shall repay to the taxpayer the amount of such refund with interest thereon at the
9 rate established under subsection (a) of section 32 of this chapter, except as hereinafter provided,
10 from the date of overpayment to a date, to be determined by the commissioner, preceding the

11 date of the refund check by not more than thirty days, whether or not such refund check is
12 accepted by the taxpayer after tender of such to the taxpayer. The acceptance of such check shall
13 be without prejudice to any right of the taxpayer to claim any additional overpayment and
14 interest thereon.

15 SECTION 3. This act shall take effect January 1, 2026.